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Case Name: *Hamid Khazaeli v. Julie B. Cliff, et al.*

Case No.: 24CV448245

Before the Court are the following motions: 1) Plaintiff's "MOTION FOR SANCTIONS AND TO COMPEL FURTHER DAY OF DEPOSITION," filed on February 17, 2026, at 10:21 p.m., and 2) Plaintiff's "MOTION TO SEAL," filed February 19, 2026, at 9:17 a.m.

MOTION FOR SANCTIONS AND TO COMPEL FURTHER DAY OF DEPOSITION

Plaintiff filed these motions on February 17, 2026, at 10:21 p.m.

As a threshold matter, multiple motions should not be combined into a single filing. (Gov't Code, § 70617(a)(4) [setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing]; see also Weil & Brown, Civil Procedure Before Trial, [8:1140.1] at 8F-60 (The Rutter Group 2011) ["Motions to compel compliance with separate discovery requests ordinarily should be filed separately."].) Among other things, combining multiple motions under the guise of one motion with one hearing date manipulates the Court's reservation system, understates the number of matters before the Court on a given day, and disturbs the Court's ability to efficiently manage its docket.

Plaintiff's motions for sanctions and for a further day of deposition are DENIED.

As for sanctions, the Notice merely states that Plaintiff requests "an order imposing sanctions". This is insufficient. "Notices must be in writing, and the notice of a motion ... must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based. If any such paper has not previously been served upon the party to be notified and was not filed by him, a copy of such paper must accompany the notice." (Code Civ. Proc., § 1010.) In addition, although issue, evidentiary, and terminating sanctions are not mentioned in this original Notice, a motion for issue or evidentiary sanctions requires a separate statement. (Cal. Rules of Court, Rule 3.1345(a)(7).) Plaintiff failed to accompany the notice with a separate statement.

Subsequent to the original filing, Plaintiff has engaged in a scattershot effort to supplement his materials:

On February 17, 2026, at 11:30 p.m., Plaintiff filed an "Amended Notice of Motion." The "Amended Notice" appears to be identical to the Notice and was also not accompanied by a separate statement.

On February 19, 2026, Plaintiff filed "Conditionally Under Seal" the same purported collection of motions, but the "Notice" filed on this date seeks "order imposing sanctions including monetary sanctions." This notice still does not mention issue, evidentiary, or terminating sanctions. It is accompanied by a longer declaration with attached exhibits, but still no separate statement directly pertaining to the motion itself.

On February 20, 2026, at 3:54 a.m., Plaintiff for the first time filed a stand-alone Separate Statement in Support of Plaintiff's Motion for Sanctions and Motion to Compel an Additional Day of Deposition." This Separate Statement is 4 pages long.

On February 20, 2026, at 4:01 a.m., Plaintiff again filed a stand-alone Separate Statement in Support of Plaintiff's Motion for Sanctions and Motion to Compel an Additional Day of Deposition." This Separate Statement spans 103 pages.

On April 30, 2026, at 11:39 p.m., Plaintiff filed an "Amended Declaration in Support of Plaintiff's Motion for Sanctions and Deposition." This is at least the third declaration Plaintiff has filed in relation to these motions, and with exhibits it encompasses 350 pages.

Finally, on April 30, 2026, at 11:44 p.m., Plaintiff filed a 104-page Amended Separate Statement in Support of Plaintiff's Motion for Sanctions for Discovery Responses and Documents."⁶

Under the totality of these circumstances, it is unjust to require Defendant to respond to a consistently moving target of authority, argument, and alleged evidence to support these motions. Nor should or will the Court comb through the file to parse and evaluate the differences between Plaintiff's evolving filings. Moreover, the Court finds that original notice and its supporting papers are insufficient to warrant granting the relief Plaintiff sought then or now, including an additional day of deposition.

In reply, Plaintiff seeks to be excused from the plethora of procedural and perhaps substantive deficiencies in his motions or for a continuance to "serve amended notices." These requests are DENIED. Although Plaintiff has done so repeatedly, Plaintiff has cited and the Court is aware of no authority allowing a moving party to file "amended" notices, separate statements, and declarations without court approval. To the extent such practice is permitted with leave of the Court, the Court will not exercise such discretion in this instance. Plaintiff seeks serious sanctions and orders and it was his obligation to seek them properly in the first instance.

MOTION TO SEAL

Plaintiff has moved to seal the "last documents in Exhibit 2 and 4 of his Declaration of Motion for Sanctions." As noted above, Plaintiff has filed multiple declarations in support of his motion for sanctions. Plaintiff seems to be referring to the declaration attached to his February 19, 2026 "NOTICE OF MOTION AND MOTION FOR SANCTIONS FOR DISCOVERY RESPONSES AND DOCUMENTS; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF HAMID KHAZAEI IN SUPPORT" filed "Conditionally Under Seal."

The unopposed motion is GRANTED.

⁶ Somewhere in the mix, Plaintiff also added a reference to sanctions pursuant to Code of Civil Procedure section 177.5

CONCLUSION

Plaintiff's motions for sanctions and for a further day of deposition are DENIED.

Plaintiff's Motion to Seal is GRANTED.

The Court will prepare the final order.

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Calendar Line 7

Case Name: *Perkins et al. v. Ford Motor Company et al.*

Case No.: 25CV469439

BACKGROUND

On January 30, 2021, Plaintiffs Wendy Perkins and John C. Perkins (“Plaintiffs”) purchased a 2021 Lincoln Aviator, VIN: 5LM5J7XC8MGL08356 (“Subject Vehicle”) from Lithia Ford Lincoln of Fresno (“Defendant”). (Complaint at ¶ 7.) Plaintiffs delivered the Subject Vehicle to Defendant for substantial repair on at least one occasion. (*Id.* at ¶ 59.) Plaintiffs allege that Defendant “breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 61.) On June 27, 2025, Plaintiffs filed suit against Defendant and Ford Motor Company for violation of statutory obligations, namely the Song-Beverly Act. Plaintiffs bring the sole cause of action for negligent repair against Defendant Lithia Ford Lincoln of Fresno.

Defendant moves to compel arbitration of this action pursuant to the Retail Installment Sales Contract (“RISC”). Defendant argues the Arbitration Provision in the RISC is governed by the Federal Arbitration Act (“FAA”) and California Arbitration Act (“CAA”). Defendant maintains it has not waived its right to arbitrate and no other grounds exist for revocation of the agreement. Having reviewed the language of the Arbitration Provision and the circumstances of its execution, the Court concludes that the motion should be granted.

LEGAL STANDARD

Defendant maintains that the FAA governs the Arbitration Provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at p 6:19-22.) The Arbitration Provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (Mtn to Compel Arbitration at p. 4:3-4.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Alternatively, the CAA governs the Arbitration Provision. Code of Civil Procedure section 1281.2 provides:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement